

ADA Complaint to the U.S. Department of Justice, Civil Rights Division

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U.S. Department of Justice, Civil Rights Division

950 Pennsylvania Avenue, NW

Washington, DC 20530

Subject: ADA Complaint Regarding Denial of Disability Accommodation in the
Washington State Court of Appeals

Dear Civil Rights Division,

I am submitting this complaint under the Americans with Disabilities Act (ADA) regarding the Washington State Court of Appeals, Division I, which recently denied my request for reasonable accommodation in a civil appeal (Case No. [Insert Case Number]).

COMPLAINT DETAILS

I requested that the Court provide counsel or paralegal assistance as an accommodation for my disabilities, which significantly impair my ability to participate effectively in my case. The Court denied this request on the grounds that

it would "fundamentally change the nature of appellate court services." The Court is aware of my indigence, as it waived my filing fee at the outset of the appeal.

NATURE OF DISABILITY AND IMPACT ON ACCESS

Due to my disabilities and indigent status, I cannot navigate the legal process effectively without assistance. The denial of this accommodation impedes my access to justice, as my disabilities affect my cognitive and emotional capacity to manage complex legal proceedings, especially in the high-stakes context of this civil appeal.

RELEVANT LEGAL STANDARDS

1. Individualized Consideration Required by ADA:

The ADA and WLAD require accommodations tailored to each individual's needs to ensure access to judicial processes for individuals with disabilities. Courts must modify usual procedures where necessary to provide meaningful access, as established in **Martin v. PGA Tour, Inc.** (2001). In **Weems v. State Board of Industrial Appeals**, it was argued that providing legal assistance does not alter the court's function but enables participation by those who otherwise cannot access justice independently.

2. GR 33(a)(1)(C) - Legal Representation as an Accommodation:

Washington's GR 33(a)(1)(C) explicitly allows for the appointment of counsel or paralegal support for otherwise unrepresented disabled parties when necessary to make court services accessible. As an indigent and disabled individual, this provision supports my request, as appointing representation aligns with the judiciary's obligation to ensure accessible and fair participation. Denying this request restricts my access to necessary judicial services, contrary to the intent of GR 33 and the Washington judiciary's commitment to fairness.

REQUEST FOR ACTION

I respectfully request that the Civil Rights Division investigate this matter and encourage the Washington Court of Appeals to provide the necessary accommodation to allow me meaningful access to the appellate process, as mandated by ADA and WLAD.

Thank you for your attention to this matter. Please contact me if further details are required.

Sincerely,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written in a cursive style.